

GINSBURG, J., dissenting

constitutional norms, a consideration key to the *Bivens* decision. 582 U.S., at 140 (emphasis added). “[I]ndividual instances of . . . law enforcement overreach,” the Court recognized, are by “their very nature . . . difficult to address *except* by way of damages actions after the fact.” *Id.*, at 144 (emphasis added).

III

Plaintiffs’ *Bivens* action arises in a setting kin to *Bivens* itself: Mesa, plaintiffs allege, acted in disregard of instructions governing his conduct and of Hernández’s constitutional rights. *Abbasi* acknowledged the “fixed principle” that plaintiffs may bring *Bivens* suits against federal law enforcement officers for “seizure[s]” that violate the Fourth Amendment. 582 U.S., at 134; *supra*, at 123.³ Using lethal force against a person who “poses no immediate threat to the officer and no threat to others” surely qualifies as an unreasonable seizure. *Tennessee v. Garner*, 471 U.S. 1, 11 (1985). The complaint states that Mesa engaged in that very conduct; it alleged, specifically, that Hernández was unarmed and posed no threat to Mesa or others. For these reasons, as Mesa acknowledged at oral argument, Hernández’s parents could have maintained a *Bivens* action had the bullet hit Hernández while he was running up or down the United States side of the embankment. See Tr. of Oral Arg. 50.

³ Unlike *Abbasi*, this case does not meaningfully differ from *Bivens v. Six Unknown Fed. Narcotics Agents*, 403 U.S. 388 (1971), with respect to the “rank of the officers involved; the constitutional right at issue; the generality or specificity of the official action; the extent of judicial guidance as to how an officer should respond to the problem or emergency to be confronted; [or] the statutory or other legal mandate under which the officer was operating.” *Abbasi*, 582 U.S., at 140. As differences material to a new-context determination, *Abbasi* also lists: “the risk of disruptive intrusion by the Judiciary into the functioning of other branches . . . or the presence of potential special factors that previous *Bivens* cases did not consider.” *Ibid.* These considerations overlap with the special-factors inquiry to which I turn in Part IV.